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The Purple Heart: Background and Issues for Congress

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Summary

The Purple Heart is one of the oldest and most recognized American military medals, awarded to servicemembers who were killed or wounded by enemy action. The conflicts 2001 to the present have greatly increased the number of Purple Hearts awarded to servicemembers.

Over the years and since 9/11, there has been ongoing debate on the eligibility criteria for the Purple Heart. Shootings on U.S. soil and medical conditions such as traumatic brain injury (TBI) and post-traumatic stress disorder (PTSD) have prompted changes to the eligibility requirements for the Purple Heart. Some critics believe that these changes may lessen the value of the medal and the sacrifices of past recipients on the battlefield. In the past, efforts to modify the Purple Heart's eligibility requirements were contentious, and veterans' groups were vocal concerning eligibility changes.

While medal requirements are often left to the military and executive branch to decide, Congress is involved in Purple Heart eligibility, utilizing its constitutional power "To Make Rules for the Government and Regulation of the land and naval Forces" (U.S. Constitution, Article I, Section 8, clause 14). The Carl Levin and Howard P. "Buck" McKeon National Defense Authorization Act for Fiscal Year 2015 (P.L. 113-291) included language that expands eligibility for the Purple Heart.

Previous debates have raised several questions about the Purple Heart. In some respects, how an event is defined can determine eligibility: Is a servicemember the victim of a crime or a terrorist attack? Conversely, arguing that killed or wounded servicemembers "should" be eligible for the Purple Heart can redefine an event: Is the servicemember an advisor to a foreign military or a combatant? Are PTSD and other mental health conditions adequate injuries to warrant the Purple Heart? These are questions that Congress might consider, if it chooses to act on this issue.

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Introduction

Requirements for military awards and decorations can change over time. New events and changes in military, political, or social conditions can generate debate over who is eligible for various military awards. These changes tend to be controversial, especially with veterans groups. Congress has considered several pieces of legislation that would change who would be eligible to receive the Purple Heart, and under what conditions.

The wars in Iraq and Afghanistan have greatly increased the number of servicemembers receiving the Purple Heart award[1] as well as the potential conditions under which they receive the award. Increasingly acknowledged conditions, such as traumatic brain injuries (TBI) and post-traumatic stress disorder (PTSD), as well as accidents and other events while deployed, bring up new questions as to when a servicemember deserves a Purple Heart. The July 17, 2015, shooting of servicemembers at a Marine recruiting office and a naval reserve center in Chattanooga, TN, again prompted questions about applying the Purple Heart to terrorist attacks versus criminal acts.

Veterans' groups often voice their views when Congress or the President proposes making changes to expand eligibility for the Purple Heart. These groups argue, for example, that a servicemember who acquires PTSD may not always deserve the same recognition as a servicemember killed or wounded in direct combat,[2] while others contend that these medical conditions can debilitate servicemembers just as much as physical injuries and can have lasting effects on servicemembers' lives. Determining which actions and events make a servicemember qualified for receiving a Purple Heart, and whether expanding eligibility does a disservice to those who have already earned the award, are contentious elements of this debate.

Although Congress has traditionally left many military award requirements to the executive branch, the Constitution does allow Congress to act in this area, and events have prompted changes regarding eligibility for the Purple Heart.[3] On December 19, 2014, Congress passed The Carl Levin and Howard P. "Buck" McKeon National Defense Authorization Act (NDAA) for Fiscal Year 2015. Section 571 of the NDAA for FY2015 expanded eligibility by redefining what should be considered an attack by a "foreign terrorist organization" for purposes of determining eligibility for the Purple Heart. As a result, servicemembers wounded and killed in the 2009 shootings in Little Rock, AR, and at Fort Hood, TX, were awarded Purple Hearts in 2015; and in subsequent attacks including the shooting at Naval Air Station Pensacola in December 2019.

Congressional offices often receive questions about Purple Heart eligibility from constituents, especially when eligibility rules change. This report examines the history of the Purple Heart and changes in eligibility over time as well as current issues facing Congress.

Original Conception

In 1782, George Washington created the Badge of Military Merit to reward "any singularly meritorious action" displayed by a soldier, noncommissioned officer, or officer in the Continental

[1] According to the Army Historical Foundation as of 2016, there have been over 30,000 Purple Hearts awarded since 2001. See Fred L. Borch, "The Purple Heart: The Story of America's Oldest Military Decoration and Some Soldier Recipients," *On Point* 21, no. 3 (2016): pp. 36-43, https://www.jstor.org/stable/26365598. See also https://armyhistory.org/the-purple-heart-the-story-of-americas-oldest-military-decoration-and-some-soldier-recipients/.

[2] Gene Beresin, "Why Are We Denying Purple Hearts to Veterans with PTSD?," Huffington Post (updated) May 3, 2015, http://www.huffingtonpost.com/gene-beresin/why-are-we-denying-purple_b_6786318.html.

[3] U.S. Constitution, Article 1, Section 8, clause 14.

Army.[4] This award was intended to encourage gallantry and fidelity among soldiers, and would later become known as the Purple Heart. Originally, this badge was meant for enlisted troops. Before this award, the only way to recognize heroism by an enlisted soldier was to promote him, or for a general to give him a battlefield commission.[5]

The Badge of Military Merit was designed as a purple heart of cloth edged with a narrow lace.[6] Records are incomplete and researchers debate how many soldiers received this award. According to Military Order of the Purple Heart, three soldiers from Connecticut were the first to receive the Badge of Military Merit during the American Revolutionary War. All three were noncommissioned officers and the only recipients who received the award from General Washington. The soldiers were Sergeant William Brown, 5th Connecticut Regiment of the Connecticut Line on May 3, 1783; Sergeant Elijah Churchill, 2nd Continental Light Dragoons on May 3, 1783; and Sergeant Daniel Bissell, 2nd Connecticut Regiment of the Connecticut Line, on June 10, 1783.[7] However, the Badge of Military Merit fell into disuse shortly after its conception.

History of the Purple Heart

The Badge of Military Merit was not seriously considered again until General Douglas MacArthur (then Army Chief of Staff) revived the award on February 22, 1932, the 200th anniversary of George Washington's birth.[8]

This award, renamed the "Purple Heart," was redesigned to its modern appearance: a purple heart-shaped medal with bronze border and George Washington's coat of arms between two green spray leaves. See **Figure 1**. General MacArthur also redefined the eligibility requirements to those who received Meritorious Service Citation certificates from World War I or those authorized to wear wound chevrons by Army Regulation (AR) 600-95.[9] It was at this point that the Purple Heart became focused on soldiers killed and wounded in combat, rather than "any singularly meritorious act."

In 1942, President Franklin Roosevelt extended the Purple Heart award, which to this point was exclusively an Army award, to Navy, Marine Corps, and Coast Guard members serving in World War II.[10] In 1952, President Truman retroactively awarded Purple Hearts to personnel in the

[4] John C. Fitzpatrick, *The Writings of George Washington from the Original Manuscript Sources 1745-1799*, vol. 24, (Washington, DC: U.S. Government Publishing Office), p. 488, https://babel.hathitrust.org/cgi/pt?id=mdp.39015074926000&seq=546.

[5] Claudette Roulo, "The Purple Heart: America's Oldest Medal," DOD News Feature Story, Aug. 7, 2023, https://www.defense.gov/News/Feature-Stories/story/Article/1650949/the-purple-heart-americas-oldest-medal/.

[6] Ibid.

[7] Ray Raymond, "History of the Medal," Military Order of the Purple Heart, https://www.purpleheart.org/HistoryoftheMedal; and Borch, Fred. L., *For Military Merit Recipients of the Purple Heart*, (Annapolis, MD: Naval Institute Press, 2010), pp. 16-19.

[8] General Douglas MacArthur, War Department, General Orders No. 3, February 22, 1932 and Fred L. Borch, "The Story of American's Oldest Military Decoration and Some of its Recipients," *Prologue*, Vol. 44, no. 4 (Winter 2012), p. 18, https://www.archives.gov/files/publications/prologue/2012/winter/purple-heart.pdf.

[9] U.S. Army Center of Military History, "The Badge of Military Merit/The Purple Heart," Updated January 31, 2021, https://history.army.mil/html/reference/purhrt.html. For current Army guidance on the Purple Heart, see AR 600-8-22, *Military Awards*, updated February 19, 2024, https://armypubs.army.mil/epubs/DR_pubs/DR_a/ARN30935-AR_600-8-22-000-WEB-1.pdf.

[10] Executive Order 9277, "Award of the Purple Heart to Persons Serving with the Navy, Marine Corps, or Coast Guard of the United States," 7 *Federal Register* 10125, December 5, 1942, https://www.govinfo.gov/content/pkg/FR-1942-12-05/pdf/FR-1942-12-05.pdf.

Navy, Marine Corps, and Coast Guard that qualified after April 5, 1917, thus including World War I veterans of all services.[11]

From 1962 until 1998, eligibility for the Purple Hearts was changed on several occasions. President Kennedy authorized Purple Hearts to all servicemembers and civilians serving with the Armed Forces, who were engaged in armed conflict against an opposing military or hostile foreign force.[12] This expansion was written to permit U.S. servicemembers, and the civilians that accompanied them, who were killed or wounded in Vietnam to receive the Purple Heart, as many of those servicemembers were officially considered advisors to the Republic of Vietnam, rather than combatants.[13]

Purple Heart eligibility was expanded again by President Reagan to include military personnel and government civilians killed or wounded in international terrorist attacks after March 28, 1973, or those serving in peacekeeping operations outside of the United States.[14] This expansion was in response to increased terrorist attacks against U.S. servicemembers abroad, namely the Marine Corps Barracks bombing in Beirut, Lebanon, in 1983.[15]

The NDAA for Fiscal Year 1996 expanded eligibility to prisoners of war injured or wounded in captivity prior to 1962, a group of servicemembers previously not covered for Purple Heart eligibility by President Kennedy's executive order.[16] In 1997, President Clinton signed the NDAA for Fiscal Year 1998, which limited future awards of the Purple Heart to military personnel.[17] It has since remained a military-only award.

The Department of Defense does not maintain a record of the total number of Purple Heart recipients. However, some military historians estimated that 1.8 million Purple Hearts have been awarded mostly to soldiers since 1932.[18] Likewise, the National Purple Heart Hall of Honor estimates 1.8 million Purple Hearts have been awarded since the medal was established by the Army in 1932.[19]

[11] Executive Order 10409, "Award of the Purple Heart to Persons Serving with the Navy, Marine Corps, or Coast Guard of the United States," 17 *Federal Register* 10397, November 14, 1952, https://www.govinfo.gov/content/pkg/FR-1952-11-14/pdf/FR-1952-11-14.pdf.

[12] Executive Order 11016, "Authorizing Award of the Purple Heart," 27 *Federal Register* 4139, May 1, 1962, https://www.govinfo.gov/content/pkg/FR-1962-05-01/pdf/FR-1962-05-01.pdf#page=3.

[13] Borch, "The Story of American's Oldest Military Decoration and Some of its Recipients," p. 21, https://www.archives.gov/files/publications/prologue/2012/winter/purple-heart.pdf.

[14] Executive Order 12464, "Award of the Purple Heart," 49 *Federal Register* 7099, February 27, 1984, https://www.govinfo.gov/content/pkg/FR-1984-02-27/pdf/FR-1984-02-27.pdf#page=11.

[15] Madeline Sapienza, *Peacetime Awards of the Purple Heart in the Post-Vietnam Period* (Washington, DC: U.S. Army Center for Military History, 1987), https://tile.loc.gov/storage-services/public/gdcmassbookdig/peacetimeawardso00sapi/peacetimeawardso00sapi.pdf.

[16] 110 Stat. 186, P.L. 104-106, National Defense Authorization Act (NDAA) for Fiscal Year 1996, February 10, 1996.

[17] 111 Stat. 1756, P.L. 105-85, National Defense Authorization Act (NDAA) for Fiscal Year 1998, November 18, 1997.

[18] Borch, *For Military Merit Recipients of the Purple Heart*, p. 15. Author notes that the Purple Heart was an Army-only award from 1932-1942, and therefore more soldiers received the Purple Heart more than all sailors, airmen, Marines, and Coast Guardsmen combined.

[19] "Frequently Asked Questions (FAQs), How many Purple Hearts have been awarded?," The National Purple Heart Hall of Honor, https://www.thepurpleheart.com/questions/.

Current Eligibility

Currently, the Purple Heart is authorized for any member of the U.S. Armed Forces who has been wounded or died from wounds sustained under one of the following conditions:[20]

> (1) In accordance with E.O. 11016, as amended by E.O.s 11382, 12464 and 13758, subject to the provisions of Sections 1129, 1129a, and 1131 of Title 10, U.S.C., and P.L. 104-106, the Secretary of a Military Department will, in the name of the President of the United States, award the PH, with suitable ribbons and appurtenances, to any Service member or former Service member under the jurisdiction of that Department who, after April 5, 1917, has been wounded, killed, or who has died or may hereafter die of wounds received under any of these circumstances:
>
> (a) In any action against an enemy of the United States.
>
> (b) In any action with an opposing armed force of a foreign country in which the Military Services are or have been engaged.
>
> (c) While serving with friendly foreign forces engaged in armed conflict against an opposing armed force in which the United States is not a belligerent party.
>
> (d) As a result of an act of any such enemy or opposing armed forces.
>
> (e) As the result of an act of any hostile foreign force.
>
> (f) While being taken captive or while being held as a prisoner of war (POW). For purposes of this Paragraph, a person is considered a POW if the person is eligible for the POW Medal pursuant to Section 1128 of Title 10, U.S.C.
>
> (g) After March 28, 1973, as a result of an international terrorist attack against the United States or a foreign nation friendly to the United States, recognized as such an attack for purposes of award of the PH by the Secretary of the Military Department concerned, or jointly by the Secretaries of the Military Departments concerned if members from more than one Military Department are killed or wounded in the attack. The Secretary of the Military Department concerned will notify the ASD(M&RA) before awarding the PH for an international terrorist attack that occurs in the United States or its territories.
>
> (h) After March 28, 1973, as a result of military operations while serving outside the territory of the United States as part of a peacekeeping force.
>
> (i) After December 6, 1941, by friendly weapon fire while directly engaged in armed conflict, other than as the result of an act of an enemy of the United States, an opposing armed force, or hostile foreign force.
>
> (j) After September 10, 2001, in an attack that was motivated or inspired by a foreign terrorist organization, which the Secretary of the Military Department concerned will treat in the same manner as an international terrorist attack, provided the attack specifically targeted the member due to their military service, as provided in Section 1129a of Title 10, U.S.C.
>
> > 1. An attack by an individual or entity shall be considered to be a foreign terrorist attack if the individual or entity was in communication with the foreign terrorist organization before the attack and the attack was inspired or motivated by the foreign terrorist organization.

[20] Department of Defense, *Manual of Military Decorations and Awards: DoD-wide Performance and Valor Decorations,* Manual 1348.33, Volume 3, Change 5 effective July 9, 2024, see 3.7. Purple Heart (PH), 22-25, https://www.esd.whs.mil/Portals/54/Documents/DD/issuances/dodm/134833_vol3.PDF.

> 2. To assist in making a PH determination pursuant to Section 1129a of Title 10, U.S.C., the Secretary of the Military Department concerned may request an intelligence assessment from the Defense Intelligence Agency's Defense Combating Terrorism Center. The Defense Combating Terrorism Center assessment of potential foreign terrorist attacks by an individual or entity will assess whether the individual or entity was in communication with the foreign terrorist organization before the attack, and if the attack was inspired or motivated by the foreign terrorist organization. The assessment will include supporting citations and rationale.
>
> (2) A wound for which the award is made must have been of such severity that it required treatment, not just examination, by a military medical officer.
>
> (a) Treatment of the wound will be documented in the Service member's medical or health record. Treatment must be noted in the Servicemember's medical record.
>
> (b) Award may be made of wounds treated by a medical professional other than a medical officer provided a medical officer issues a statement in the Service member's medical record that the extent of the wounds was such that the wounds would have required treatment from a medical officer if one had one been available to treat the wounds.[21]
>
> (3) The PH is not authorized for a wound or death that results from the willful misconduct of the member.
>
> (4) After May 17, 1998, pursuant to Section 1131 of Title 10, U.S.C., the PH may only be awarded to a person who is a Service member at the time the person is killed or wounded under circumstances otherwise qualifying that person for award of the PH. Before this date, the Secretary of the Military Department concerned was authorized to award the PH to U.S. civilian nationals who were serving under competent authority in any capacity with an armed force of that department. [22]
>
> (5) In accordance with Section 1136 of Title 10, U.S.C., the award is not authorized if the awardee's service after the qualifying incident was not honorable. Refer to Section 8 of DoDI 1348.33 for additional guidance.

For deceased servicemembers, the Purple Heart may be given to the representatives of the deceased as the individual Service Secretary considers appropriate.

Servicemembers can be awarded multiple Purple Hearts for separate incidents. The servicemember receives the Purple Heart medal for the first award. Subsequent awards are indicated with oak leaf clusters or 5/16-inch service stars, depending on the rules of the recipient's service.[23] Purple Hearts may not be awarded to foreign military personnel.[24]

Benefits for Purple Heart Recipients

Recipients of the Purple Heart are entitled to the following benefits:

[21] Jim Garamone, "DOD Issues Purple Heart Standards for Brain Injury," Army.mil, April 28, 2011, https://www.army.mil/article/60078/dod_issues_purple_heart_standards_for_brain_injury; Department of Defense, *Manual of Military Decorations and Awards: DoD-wide Performance and Valor Decorations,* Manual 1348.33, vol. 3, July 9, 2024, see 3.7. Purple Heart (PH), 22-25.

[22] Ibid.

[23] See an example at "Medal #6 Purple Heart with Oak Leaf Clusters," Audie L. Murphy Memorial Website, 1996, https://www.audiemurphy.com/decorations006.htm. Note: Murphy was the most decorated U.S. soldier during WWII.

[24] Department of Defense, *Manual of Military Decorations and Awards: DoD-wide Performance and Valor Decorations*, DODM 1348.33, vol. 3, p. 23. Note: The Purple Heart may not be awarded to foreign personnel.

- Qualify for enrollment in Department of Veterans Affairs (VA) health care and are exempt from copayments for inpatient and outpatient VA medical services.[25]
- Automatically granted full Post-9/11 GI Bill benefits regardless of the amount of time they spent on active duty.[26]
- Eligibility of Purple Heart veterans for burial and inurnment at Arlington National Cemetery.[27]
- Recipients with an honorable discharge are granted a 10-point preference for federal hiring.
- Effective April 1, 2019, recipients receive priority #1 consideration when it comes to claims before the VA.
- Effective January 1, 2020, Purple Heart veterans and their caretakers have access to Military Welfare and Recreation (MWR) retail and lodging facilities.
- Effective January 1, 2020, active-duty members awarded the Purple Heart are exempt from the VA Home Loan funding fee.[28] Note: The funding fee applies only to the loan amount, not the purchase price of the home.

In addition, some states offer other benefits such as special license plates, college grants, and designated parking.[29]

Issues for Congress

Although the decision to award medals and other military decorations traditionally rests with the executive branch, Congress has been expanding its role in this area in recent decades, exercising its constitutional power "To Make Rules for the Government and Regulation of the land and naval forces."[30] Previously, Congress took the lead and adjusted Purple Heart eligibility in both the NDAA for FY1996 and the NDAA for FY1998. See **Appendix A**. In response to some mass shootings in recent years, Congress passed a provision in the NDAA for FY2015 that expanded the Purple Heart's eligibility requirements.

[25] P.L. 106-117, *Code of Federal Regulations* (C.F.R.), Title 38, Part 17, Section 108, GovInfo, https://www.govinfo.gov/content/pkg/CFR-2023-title38-vol1/pdf/CFR-2023-title38-vol1-sec17-108.pdf.

[26] Typically to get the full Post-9/11 GI Bill, a veteran needs to have served at least 36 months of active duty. For more information, see CRS Report R45205, *Harry W. Colmery Veterans Educational Assistance Act of 2017 (P.L. 115-48)*, by Cassandria Dortch. See also Department of Veterans Affairs, Yellow Ribbon Program," https://www.va.gov/education/about-gi-bill-benefits/post-9-11/yellow-ribbon-program/.

[27] C.F.R. Title 32, Part 553, Sections 12 and 13, GovInfo, https://www.govinfo.gov/app/details/CFR-2023-title32-vol3/CFR-2023-title32-vol3-sec553-12; and CRS In Focus IF11362, *Defense Primer: Arlington National Cemetery*, by Barbara Salazar Torreon.

[28] P.L. 116-23, Section 6 (c) Waiver of Fees for Purple Heart Recipients, and VA Housing Assistance, "VA funding fee and loan closing costs," https://www.va.gov/housing-assistance/home-loans/funding-fee-and-closing-costs/.

[29] See list of benefits by state at Veteran State Benefits, https://www.military.com/benefits/veteran-state-benefits; and "Purple Heart Day and VA benefits to recipients," VA News, August 7, 2022, https://news.va.gov/106548/purple-heart-day-and-va-benefits-to-recipients/.

[30] U.S. Constitution, Article I, Section 8, clause 14.

Domestic Terrorism and the FY2015 NDAA (P.L. 113-291)

Little Rock, Arkansas, and Fort Hood, Texas,[31] 2009

On June 1, 2009, a man who was allegedly angry over the killing of Muslims in Iraq and Afghanistan opened fire on two U.S. Army soldiers near a recruiting station in Little Rock, AR, killing one and wounding the other.[32] On November 5, 2009, an Army major opened fire at Ft. Hood, TX, killing 13 and wounding 29, many of them servicemembers. Both men were charged with murder and other crimes.[33]

Federal and local law enforcement authorities initially considered these acts to be crimes, and not acts perpetrated by an enemy or hostile force, which made them ineligible for the Purple Heart.[34] However, some believed these acts should be viewed as acts of war or domestic terrorism because they involved Muslim perpetrators angered over U.S. actions in Iraq and Afghanistan.[35]

Section 571 of the NDAA for FY2015 (P.L. 113-291) expanded the eligibility for the Purple Heart by redefining what should be considered an attack by a "foreign terrorist organization" for purposes of determining eligibility for the Purple Heart. The law states that an event should be considered an attack by a foreign terrorist organization if the perpetrator of the attack "was in communication with the foreign terrorist organization before the attack" and "the attack was inspired or motivated by the foreign terrorist organization."

Still, some are opposed to awarding the Purple Heart for terrorist acts that were initially deemed "workplace violence" by the Department of Defense (DOD) or a criminal act, and not earned on a battlefield.[36] This act arguably sets a precedent for the future and could make Purple Heart eligibility more subjective, allowing public sentiment to determine what events are worthy of a Purple Heart.

On April 10, 2015, then-Army Secretary John McHugh and Army Lieutenant General Sean MacFarland, then-3rd Corps and Fort Hood commanding general, presented Purple Hearts to the families of the 10 servicemembers killed and to the 26 servicemembers wounded during the attack.[37] Defense of Freedom Medals were also awarded to DOD civilians killed and wounded

[31] Fort Hood was renamed Fort Cavazos on May 9, 2023, in compliance with the William M. (Mac) Thornberry National Defense Authorization Act (NDAA) for Fiscal Year 2021 (P.L. 116-283) that required the removal or modification of any DOD assets commemorating the Confederate States of America or anyone who voluntarily served under the Confederacy. See "Fort Cavazos Redesignation," U.S. Army at https://home.army.mil/cavazos/about/fort-cavazos-redesignation.

[32] Steve Barnes and James Dao, "Gunman Kills Soldier outside Recruiting Station," *The New York Times* (New York, NY) June 2, 2009, http://www.nytimes.com/2009/06/02/us/02recruit.html?_r=1.

[33] Ibid.

[34] Department of Defense, "Army Secretary Releases Results of Fort Hood Review," Army Service News, December 8, 2020, https://www.defense.gov/News/News-Stories/Article/Article/2440007/army-secretary-releases-results-of-fort-hood-review/; *Report of the Fort Hood Independent Review Committee*, November 6, 2020, at https://www.army.mil/e2/downloads/rv7/forthoodreview/2020-12-03_FHIRC_report_redacted.pdf.

[35] Sig Christenson, "Some Labeling Hasan Terrorist," *San Antonio Express-News* (San Antonio, TX) August 13, 2012, http://www.mysanantonio.com/news/local_news/article/Some-labeling-Hasan-terrorist-3783225.php.

[36] Secretary of Defense Memorandum, "Final Recommendations of the Ft. Hood Follow-on Review," August 18, 2010, at https://apps.dtic.mil/sti/pdfs/ADA528115.pdf; and *Protecting the Force: Lessons From Fort Hood*, DOD Independent Review Related to Fort Hood, January 2010, at https://apps.dtic.mil/dtic/tr/fulltext/u2/a513143.pdf.

[37] Heather Graham-Ashley, "Fort Hood Shooting Victims, Families Receive Medals," DOD News, April 11, 2015, at https://dod.defense.gov/News/Article/Article/604443/fort-hood-shooting-victims-families-receive-medals/.

during the attack. In a memorandum, Secretary McHugh directed the Army to "expedite certain other benefits for which soldiers receiving the Purple Heart are traditionally eligible."[38]

In addition to the victims of the Fort Hood shooting, the two victims of the June 2009, shooting at a recruiting station in Little Rock, Arkansas, received Purple Hearts on July 1, 2015. Army Private William Andrew "Andy" Long was killed and Army Private Quinton Ezeagwula was wounded in that attack by Abdulhakim Muhammad, who was convicted and sentenced to life in prison without the possibility of parole.[39]

NDAA for FY2016 (H.R. 1735)

Encouraged by the expanded eligibility provision in the NDAA for FY2015, legislation was introduced during the 114th Congress to award Purple Hearts to other military victims of domestic terrorism.[40] Section 583 of the House-passed version of H.R. 1735, the NDAA for FY2016, would have awarded the Purple Heart to servicemembers who were victims of the April 19, 1995, Oklahoma City, Oklahoma bombing. Supporters for awarding the Purple Heart to the victims of the Oklahoma City bombing refer to the FY2015 NDAA as precedent. However, critics contend that the bombing was an act of domestic terrorism and does not meet the current eligibility requirements of the assailant being inspired by or motivated by an international terrorist organization. The final version of the FY2016 NDAA (P.L. 114-92) did not include this provision.

Chattanooga Shooting on July 16, 2015

On July 16, 2015, Muhammad Youssef Abdulazeez shot at a Marine Corps recruiting center and Naval Reserve Center in Chattanooga, TN. This incident again raised congressional interest regarding the eligibility for the Purple Heart for servicemembers killed and wounded during an attack inspired by or motivated by international terrorist organizations. Four marines were killed and one was injured during the rampage, and the lone sailor later died from his injuries.[41] The FBI investigation later concluded that Abdulazeez was "motivated by foreign terrorist organization propaganda," but that it was difficult to determine which terrorist group may have inspired him.[42]

On December 16, 2015, then-Secretary of the Navy Ray Mabus announced that the Purple Heart would be awarded to five servicemembers killed and one wounded in the July 2015 shootings at two naval centers in Chattanooga, Tennessee. Secretary Mabus stated that "following an extensive investigation, the FBI and NCIS have determined that this attack was inspired by a

[38] U.S. Army, "McHugh orders benefits be provided to Purple Heart recipients," U.S. Army, April 17, 2015, https://www.army.mil/article/146546/mchugh_orders_benefits_be_provided_to_purple_heart_recipients; and Michelle Tan, "Army Extends Benefits to Hood Shooting Victims," Army Times, April 16, 2015, at https://www.armytimes.com/news/your-army/2015/04/16/army-extends-benefits-to-hood-shooting-victims/.

[39] Claudia Lauer, "Army Recruiters Shot in Little Rock to Receive Purple Heart," Military Times, April 16, 2015, https://www.militarytimes.com/news/your-military/2015/04/17/army-recruiters-shot-in-little-rock-to-receive-purple-heart/.

[40] For more information, see CRS Report R44120, *FY2016 National Defense Authorization Act: Selected Military Personnel Issues*, by Kristy N. Kamarck, Lawrence Kapp, and Barbara Salazar Torreon. See section "Award of the Purple Heart to members of the Armed Forces who were victims of the Oklahoma City, OK, bombing."

[41] Killed were the following Marines: Sgt. Carson Holmquist, Gunnery Sgt. Thomas J. Sullivan, Lance Cpl. Squire K. Wells, and Staff Sgt. David A. Wyatt; and Navy Petty Officer 2nd Class Randall Smith. Marine Sgt. DeMonte Cheeley was injured but survived the attack; see Gina Harris, "Chattanooga shooting investigation: Marine shielded his daughter from terrorist's rampage," Marine Times, September 25, 2015, https://www.marinecorpstimes.com/news/your-marine-corps/2015/09/26/chattanooga-shooting-investigation-marine-shielded-his-daughter-from-terrorist-s-rampage/.

[42] Kristina Sgueglia, "Chattanooga shootings 'inspired' by terrorists, FBI chief says," CNN, December 16, 2015, http://www.cnn.com/2015/12/16/us/chattanooga-shooting-terrorist-inspiration/.

foreign terrorist group, the final criteria required for the awarding of the Purple Heart to this Sailor and these Marines."[43]

On January 14, 2016, then-Navy Vice Admiral Robin Braun presented the Purple Heart to the family of Logistics Specialist 2nd Class Randall Smith at the Navy Operational Support Center Chattanooga.[44] Brigadier General Terry V. Williams presented the Purple Heart on January 26, 2016, to Sergeant DeMonte R. Cheeley, who survived the attack, at a ceremony in Chattanooga.[45]

On April 20, 2016, Lieutenant General Rex McMillian, then-head of Marine Corps Forces Reserve, presented Purple Hearts to the families of Gunnery Sergeant Thomas Sullivan, Staff Sergeant David Wyatt, Sergeant Carson Holmquist, and Lance Corporal Squire "Skip" Wells in a ceremony at the Hunter Museum of American Art in Chattanooga.[46]

Attack on Paris-Bound Train, August 21, 2015

U.S. Airman 1st Class Spencer Stone was onboard a train from Amsterdam to Paris with two friends, Anthony Sadler and Alek Skarlatos, when they subdued a heavily armed gunman who attempted to fire an AK-47 at the passengers. Stone was stabbed in the face and neck by the gunman as the trio restrained him before he could discharge his weapon. The vacationing Americans were hailed as heroes and awarded the French Legion of Honor on August 24, 2015. On September 14, 2015, then-Air Force Secretary Deborah Lee James announced that Stone would receive the Purple Heart along with the Airman's Medal, the Air Force's highest noncombat award.[47] At the Pentagon on September 17, 2015, then-Defense Secretary Ash Carter presented Stone the Purple Heart and Airman's Medal. During the ceremony, Carter presented the Soldier's Medal to Oregon National Guard Specialist Alek Skarlatos, and civilian Anthony Sadler received the Secretary of Defense Medal for Valor.[48]

Orlando Shooting on June 12, 2016

On June 12, 2016, a security guard, Omar Mateen, killed 49 people and wounded 53 others in an attack inside Pulse, a gay nightclub in Orlando, Florida. Army Reserve Captain Antonio Davon Brown[49] was one of the 49 people killed and may be eligible for the Purple Heart depending on the outcome of the FBI investigation. According to the FBI, Mateen had pledged allegiance to the

[43] David B. Larter, "Chattanooga Shooting Victims Will Receive Purple Heart," Navy Times, December 16, 2015, https://www.navytimes.com/news/your-navy/2015/12/16/chattanooga-shooting-victims-will-receive-purple-heart/.

[44] Magan Strickland, "Purple Heart Ceremony Honors Logistics Specialist 2nd Class Randall Smith," CHIPS, January 19, 2016, https://www.doncio.navy.mil/CHIPS/ArticleDetails.aspx?ID=7344.

[45] Jeff Schogol, "Marine wounded in Chattanooga attack receives Purple Heart," Marine Times, January 26, 2016, https://www.marinecorpstimes.com/news/your-marine-corps/2016/01/26/marine-wounded-in-chattanooga-attack-receives-purple-heart/.

[46] Matthew L. Schehl, "Families of Marines killed in Chattanooga attack receive Purple Hearts," Marine Times, April 20, 2016, https://www.marinecorpstimes.com/story/military/2016/04/20/families-marines-killed-chattanooga-attack-receive-purple-hearts/83286802/.

[47] Stephen Losey, "Airman Spencer Stone, hero in foiled French terror plot, to receive Purple Heart," Air Force Times, September 14, 2015, https://www.airforcetimes.com/news/your-air-force/2015/09/14/airman-spencer-stone-hero-in-foiled-french-terror-plot-to-receive-purple-heart/.

[48] David Vergun, "Carter Honors 3 who Stopped Gunman on Paris-Bound Train," U.S. Department of Defense, September 17, 2015, https://www.defense.gov/News/Article/Article/617702/carter-honors-3-who-stopped-gunman-on-paris-bound-train/.

[49] Department of Defense, "Statement by Secretary of Defense Ash Carter on the Death of Army Reserve Captain Antonio Brown," Department of Defense, June 14, 2016, https://www.defense.gov/News/News-Releases/News-Release-View/Article/799493/statement-by-secretary-of-defense-ash-carter-on-the-death-of-army-reserve-capta/.

Islamic State group after his attack in a call to 911.[50] As of the date of this report, it is unclear if the Army will make a decision regarding Captain Brown's eligibility for the Purple Heart.

Naval Air Station Pensacola on December 6, 2019

On December 6, 2019, Mohammed Saeed Alshamrani, a military officer from Saudi Arabia, used a handgun to open fire on a classroom at Naval Air Station (NAS) Pensacola in Florida.[51] He killed three flight training students (Ensign Joshua Watson, Airman Mohammed Haitham and Airman Cameron Walters) and injured eight more. Alshamrani died in a shootout with sheriff's officers. Based on the Department of Justice and FBI's investigation, the attack was determined an act of terrorism after the shooter was found to have been inspired by jihadi ideology.[52] Officials with Naval Education and Training Command announced that the three servicemembers killed and those injured will receive Purple Hearts. On December 4, 2020, the Naval Aviation Schools Command held a memorial service and presented Purple Hearts to the families of Ensign Joshua Watson, Petty Officer 3rd Class Mohammed Haitham and Petty Officer 3rd Class Cameron Walters.[53]

FY2019 NDAA and Purple Heart Recipients

The House version of the NDAA for FY2019, H.R. 5515, included a provision (Section 629) that would extend certain morale, welfare, and recreation (MWR) privileges to certain veterans, including Purple Hearts recipients, and their caregivers. This bill became P.L. 115-232 on August 13, 2018. Section 621 of the enacted bill extended eligibility of certain MWR and commissary privileges to certain veterans, including Purple Heart recipients, and their caregivers starting January 1, 2020. For additional information see section, "Defense Commissary System," in CRS Report R45343, *FY2019 National Defense Authorization Act: Selected Military Personnel Issues*, and CRS In Focus IF11089, *Defense Primer: Military Commissaries and Exchanges*, by Kristy N. Kamarck and Barbara Salazar Torreon.

FY2023 NDAA and Purple Heart Recipients

Section 584 of the "James M. Inhofe National Defense Authorization Act for Fiscal Year 2023" (P.L. 117-263) requires enhanced information related to awarding of the Purple Heart to be posted on a publicly available internet site. This information includes a link to the description of the background of the Purple Heart, award eligibility criteria, and contact information for each

[50] FBI Tampa, "Investigative Update Regarding Pulse Nightclub Shooting," FBI.gov, June 20, 2016, https://www.fbi.gov/contact-us/field-offices/tampa/news/press-releases/investigative-update-regarding-pulse-nightclub-shooting; and Tara Copp, "DOD: Soldier slain in Orlando attack might qualify for Purple Heart," *Stars and Stripes*, June 16, 2016, https://www.stripes.com/migration/dod-soldier-slain-in-orlando-attack-might-qualify-for-purple-heart-1.415017.

[51] Courtney Mabeus-Brown, "Saudi gunman and at least 3 victims reported dead at NAS Pensacola," *Navy Times*, (2019), https://www.navytimes.com/news/your-navy/2019/12/06/active-shooter-at-nas-pensacola-reported-dead/.

[52] Gina Harkins, "Troops Wounded in Pensacola Shooting to Be Awarded Heroism Medals, Purple Hearts," Military.com, March 9, 2020, https://www.military.com/daily-news/2020/03/09/sailors-wounded-pensacola-shooting-be-awarded-heroism-medals-purple-hearts.html; and Department of Defense, "Naval Air Station Pensacola Investigation Update," Department of Defense, May 18, 2020, https://www.defense.gov/Newsroom/Releases/Release/Article/2190048/naval-air-station-pensacola-investigation-update/.

[53] Naval Education and Training Command Public Affairs, "Memorial Service, Award Ceremonies Honor Victims of Pensacola Terrorist Attack," U.S. Navy, December 4, 2020, https://www.navy.mil/Press-Office/News-Stories/Article/2436214/memorial-service-award-ceremonies-honor-victims-of-pensacola-terrorist-attack/.

service's awards and decorations branch "to facilitate confirmation, by a veteran or a veteran's next of kin, whether a veteran was awarded the Purple Heart after December 31, 2002."[54]

118th Congress Legislation

For bill summaries of Purple Heart legislation during the 118th legislative session, see **Table 1**.

Table 1. Purple Heart Legislation in the 118th Congress (2023-2024)

Bill Number and Date Introduced	Title and Bill Summary	Latest Action
H.R. 214 on 01/09/2023	Veterans' True Choice Act of 2023 This bill allows covered veterans to receive coverage under TRICARE Select, a health care program of the Department of Defense (DOD). Veterans covered by this bill include those with service-connected disabilities, former prisoners of war, Purple Heart recipients, Medal of Honor recipients, those discharged from service due to disability, and those entitled to disability compensation. The Department of Veterans Affairs (VA) must reimburse DOD's costs of enrolling eligible veteran beneficiaries in the program. A covered veteran may not concurrently receive medical care from DOD and the VA.	01/09/2023 Referred to the House Committee on Armed Services, and in addition to the House Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.
H.R. 1841 on 03/28/2023	Purple Heart Freedom to Work Act This bill increases the monthly income limit that is used to determine whether certain Purple Heart recipients are eligible for Social Security Disability Insurance (SSDI) benefits. Specifically, when making such determinations with respect to Purple Heart recipients who are entitled to SSDI benefits based on combat-related injuries, the Social Security Administration must use the limit that applies to individuals who are blind rather than the lower limit that applies to other SSDI recipients. In addition, the bill phases out SSDI benefits for these Purple Heart recipients, with benefits reduced by $1 for every $4 of earnings in excess of the limit.	03/28/2023 Referred to the House Committee on Ways and Means.
H.R. 2413 on 03/30/2023	Dental Care for Veterans Act This bill expands eligibility for veterans for dental care provided by the Department of Veterans Affairs (VA). Specifically, the bill makes all veterans who are enrolled in the VA health care system eligible for VA-provided dental services. Currently, only veterans who have a service-connected dental issue or meet other narrow criteria are eligible for certain dental services. The bill phases in eligibility over four years based upon existing eligibility, degree of service-connected disability or other disability, prisoner of war status, award of a Purple Heart, financial need, or VA health care eligibility.	04/14/2023 Referred to the House Committee on Veterans' Affairs, Subcommittee on Health

[54] 136 Stat. 2611, P.L. 117-263, James M. Inhofe National Defense Authorization Act for Fiscal Year 2023, December 23, 2022.

Bill Number and Date Introduced	Title and Bill Summary	Latest Action
S. 1644 on 05/17/2023	Veterans' True Choice Act of 2023 This bill allows covered veterans to receive coverage under TRICARE Select, a health care program of the Department of Defense (DOD). Veterans covered by this bill include those with service-connected disabilities, former prisoners of war, Purple Heart recipients, Medal of Honor recipients, those discharged from service due to disability, and those entitled to disability compensation. The Department of Veterans Affairs (VA) must reimburse DOD's costs of enrolling eligible veteran beneficiaries in the program. A covered veteran may not concurrently receive hospital care or medical services from DOD and the VA.	05/17/2023 Read twice and referred to the Senate Committee on Armed Services.
H.R. 4140 on 06/14/2023	To authorize the President to award the Purple Heart to Louis Boria, Jr., for injuries incurred during World War II and the Korean War while a member of the Marine Corps.	06/14/2023 Referred to the House Committee on Armed Services.
H.R. 5765 on 09/27/2023	Passports for Purple Hearts Act This bill amends the Passport Act of 1920 to exempt from the collection of certain passport fees an individual who was awarded the Purple Heart.	09/27/2023 Referred to the House Committee on Foreign Affairs.
H.R. 8070 on 04/18/2024	Servicemember Quality of Life Improvement and National Defense Authorization Act for Fiscal Year 2025 Section 529A. Authorization of members awarded certain decorations to wear the uniform when not on active duty.	07/08/2024 Received in the Senate.
S. 4396 on 05/23/2024	Purple Heart Veterans Education Act of 2024 This bill amends title 38, *United States Code*, to authorize an individual who is awarded the Purple Heart for service in the Armed Forces to transfer unused Post-9/11 Educational Assistance to a family member.	05/23/2024 Read twice and referred to the Senate Committee on Veterans' Affairs.
H.R. 8896 on 06/28/2024	To amend title 38, *United States Code*, to authorize an individual who is awarded the Purple Heart for service in the Armed Forces to transfer unused Post-9/11 Educational Assistance to a family member, and for other purposes.	08/22/2024 Referred to the House Committee on Veterans' Affairs, Subcommittee on Economic Opportunity.

Source: Congress.gov as of October 2, 2024.

Traumatic Brain Injuries, Post-Traumatic Stress Disorder, and the Purple Heart

The large number of veterans with invisible wounds[55] returning from Iraq and Afghanistan has the Department of Defense reevaluating Purple Heart eligibility for traumatic brain injuries and

[55] "Invisible wounds" is a term used to describe psychological and cognitive injuries. See Terri Tanielian and Lisa H. Jaycox, editors, "Invisible Wounds of War: Psychological and Cognitive Injuries, Their Consequences, and Services to (continued...)

mental conditions such as post-traumatic stress disorder.[56] DOD considers some TBIs eligible for the Purple Heart, as many of those injuries can be diagnosed using brain scans and other objective medical tests.[57] However, there is continued debate on the inclusion of mental conditions, such as PTSD, as part of the appropriate criteria for the Purple Heart. Congress, as well as various executive agencies and departments, is funding and conducting studies regarding PTSD.[58] The National Alliance on Mental Illness, a national grassroots advocacy group representing families and people affected by mental illness, is advocating that the Purple Heart be awarded for psychological wounds including PTSD to eliminate stigma and encourage servicemembers to seek care.[59]

At this time, DOD does not consider servicemembers with PTSD eligible for the Purple Heart. Army Regulation 600-8-22 allows "concussion injuries caused as a result of enemy generated explosions" but specifically disqualifies post-traumatic stress disorders.[60] Army guidance emphasizes "the degree to which the enemy or hostile force caused the wound" when determining eligibility and places PTSD in a column of noneligible injuries.[61] The Marine Corps defines PTSD as a "severe combat stress injury" and says that combat stress injuries are "not directly caused by the enemy's intentional use of an outside force or agent," and thus do not qualify.[62]

Servicemembers are divided on this issue. Some servicemembers believe that mental injuries such as PTSD should be eligible for the Purple Heart, while others believe that it would dishonor those who have received Purple Hearts for physical injuries.[63] Proponents argue that some veterans are less likely to seek help for their mental-health injuries because of the stigma

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Assist Recovery," *Rand Corporation Center for Military Health Policy Research*, 2008, http://www.rand.org/content/dam/rand/pubs/monographs/2008/RAND_MG720.sum.pdf.

[56] The National Institutes of Health (NIH) classifies PTSD as an anxiety disorder that often occurs after experiencing a traumatic event, such as disaster, assault, abuse, prison, or war. The cause of PTSD is unknown, although psychological, genetic, social, and physical factors are involved. There are also no tests to diagnose PTSD; doctors make the diagnosis based on a medical professional's judgment of the symptoms. It is unclear why a traumatic event causes PTSD in some people and not in others. NIH Post-Traumatic Stress Disorder site at https://www.nimh.nih.gov/health/publications/post-traumatic-stress-disorder-ptsd/index.shtml. See also "Purple Heart," U.S. Army Human Resources Command, November 8, 2023, https://www.hrc.army.mil/content/Purple%20Heart.

[57] Jim Garamone, "DOD Issues Purple Heart Standards for Brain Injury," American Forces Press Service, April 28, 2011, https://www.army.mil/article/60078, and ARNEWS, "Army Clarifies Award of Purple Heart for Concussion," U.S. Army, June 20, 2011, http://www.army.mil/article/55850/; and Chad Garand, "14 Years After He Was Wounded in a Blast, Iraq Veteran Gets a Purple Heart for His TBI," *Stars and Stripes*, February 4, 2020, https://www.stripes.com/news/veterans/14-years-after-he-was-wounded-in-a-blast-iraq-veteran-gets-a-purple-heart-for-his-tbi-1.617546.

[58] For more information, see CRS Report R40941, *Health Care for Veterans: Traumatic Brain Injury*, by Erin Bagalman.

[59] National Alliance on Mental Illness, *Parity for Patriots: The Mental Health Needs of Military Personnel, Veterans, and their Families*, Arlington, VA, June 2012, p. 7, https://www.nami.org/wp-content/uploads/ParityforPatriots.pdf.

[60] U.S. Army, *Army Regulation 600-8-22, Military Awards,* (Effective February 19, 2024), p. 25, https://armypubs.army.mil/epubs/DR_pubs/DR_a/ARN30935-AR_600-8-22-000-WEB-1.pdf.

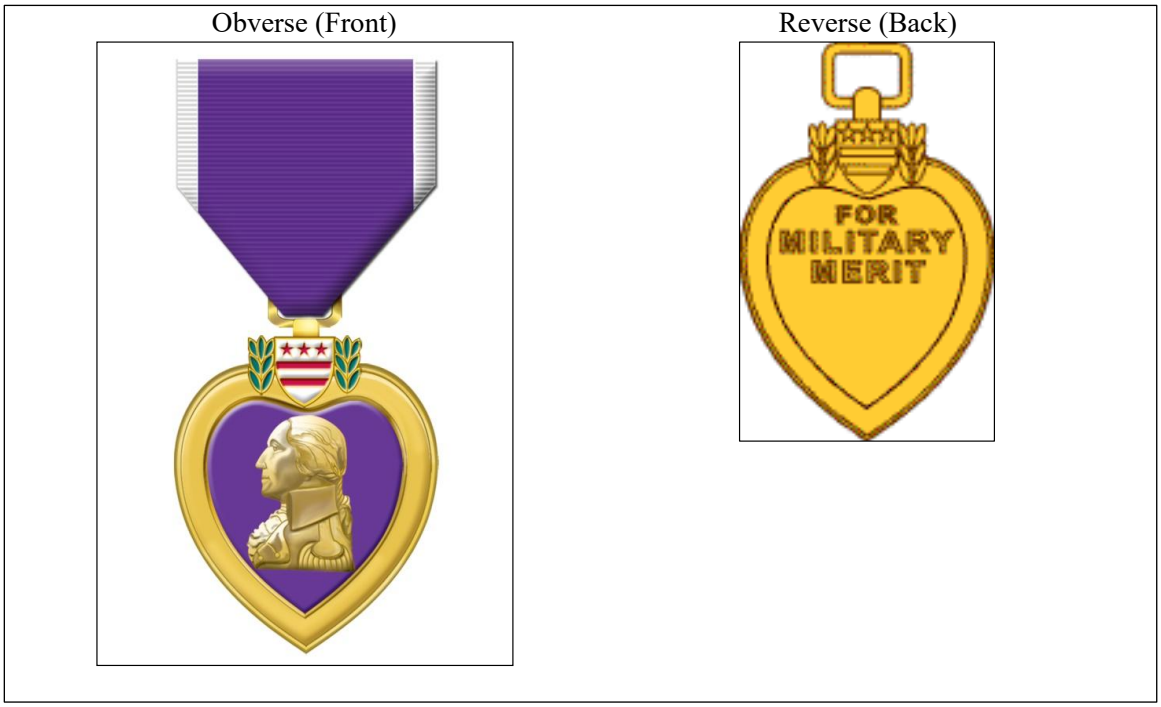
[61] Ibid, p. 147. See also CRS Insight IN11221, *Management of Mild Traumatic Brain Injury (mTBI) in the Military*, by Bryce H. P. Mendez.

[62] Manpower Management Division, Manpower and Reserve Affairs, Headquarters Marine Corps, Purple Heart *Medal-Revised Criteria for Mild Traumatic Brain Injury and Updated Coordinating Instructions*, MARADMIN 245/11, April 15, 2011, http://www.marines.mil/News/Messages/Messages-Display/Article/888214/purple-heart-medal-revised-criteria-for-mild-traumatic-brain-injury-and-updated/.

[63] Jacqueline Klimas, "Fort Hood's Mentally Wounded Veterans Don't Qualify for Purple Hearts 2009 Shooting," *The Washington Times* April 9, 2015, http://www.washingtontimes.com/news/2015/apr/9/ft-hoods-mentally-wounded-veterans-dont-qualify-fo/.

associated with PTSD, and that stigma could be lessened by recognizing their injuries as real.[64] Opponents, including some veterans from the Military Order of the Purple Heart and Veterans of Foreign Wars, are resistant to accepting PTSD as grounds for eligibility. A representative of The Military Order of the Purple Heart stated, "We believe strongly in and support the criteria that the wound or death should be sustained in combat at the hands of the enemies of the United States."[65] In addition, the national spokesman for the Veterans of Foreign Wars, Joseph E. Davis said, "Medals aren't awarded for illness or disease, but for 'achievement and valor.'"[66]

Figure 1. The Purple Heart Medal



Source: The Institute of Heraldry, Personal Decorations: Purple Heart.

[64] Nathan Fletcher, "Veterans with Mental-Health Injuries Deserve Purple Hearts, too," *Washington Post* May 29, 2017, https://www.washingtonpost.com/opinions/veterans-with-mental-health-injuries-deserve-purple-hearts-too/2017/05/29/b1210a3e-4250-11e7-9869-bac8b446820a_story.html?utm_term=.b922f44d91db.

[65] Ibid.

[66] Barrie Barber, "Purple Hearts for PTSD Debated," *Dayton Daily News,* June 17, 2012, https://www.daytondailynews.com/news/local/purple-hearts-for-ptsd-debated/zX8vFWoqny4EJidLnsonJN/.

Appendix A. Timeline of Purple Heart Eligibility

August 7, 1782: George Washington creates the Badge of Military Merit. Awarded to several Continental soldiers, but it quickly falls from use.

February 22, 1932: Army Chief of Staff General Douglas MacArthur revives the Badge of Military Merit as an Army award, renamed "the Purple Heart," and retroactively awarded to wounded WWI veterans.

December 3, 1942: Executive Order 9277—President Franklin Roosevelt expands Purple Heart eligibility to include U.S. Navy, Marine Corps, and Coast Guard. Retroactively awards Purple Hearts to December 6, 1941.

November 12, 1952: Executive Order 10409—President Truman retroactively awards Purple Hearts to U.S. Navy, Marine Corps, and Coast Guard veterans after April 5, 1917.

April 25, 1962: Executive Order 11016—President Kennedy extends eligibility to civilians serving with military forces.

February 23, 1984: Executive Order 12464—President Reagan awards Purple Hearts to those killed and wounded in terrorist attacks after March 28, 1973, or on peacekeeping missions outside the United States.

February 10, 1996: National Defense Authorization Act for Fiscal Year 1996 (Section 521, P.L. 104-106) includes "prisoners of war wounded before April 25, 1962, while held as a prisoner of war (or while being taken captive) in the same manner as a former prisoner of war who is wounded on or after that date while held as a prisoner of war (or while being taken captive)."

November 18, 1997: National Defense Authorization Act for Fiscal Year 1998 (Section 571, P.L. 105-85) limits future Purple Heart awards to members of the Armed Forces.

October 17, 2006: National Defense Authorization Act for Fiscal Year 2007 (Section 556, P.L. 109-364) includes prisoners of war captured after December 7, 1941.

April 30, 2008: Purple Heart Family Equity Act of 2007 (P.L. 110-207) revises the congressional charter of the Military Order of the Purple Heart to authorize associate membership for the spouse and siblings of a recipient of the Purple Heart medal.

December 19, 2014: National Defense Authorization Act for Fiscal Year 2015 (Section 571, P.L. 113-291) expands eligibility for the Purple Heart by redefining what should be considered an attack by a foreign terrorist organization, and awards Purple Heart medals to servicemembers wounded or killed during the 2009 shootings at Ft. Hood, Texas, and Little Rock, Arkansas.

January 17, 2017: Executive Order 13758—President Obama amends Executive Order 11016 to update eligibility criteria for award of the Purple Heart to reflect statutory changes to Purple Heart award criteria from 1993 through 2017.

Appendix B. Staffer Instructions for Medal Requests

Members of Congress are able to directly request that a Service Secretary consider awarding military decorations to individuals or groups. Upon receiving a request from a Member's office, the Service Secretary concerned will review the proposal for the award or presentation of a decoration (or the upgrading of a decoration).

Based on that review, the Secretary shall determine the merits of approving the award or presentation of the decoration and other necessary determinations. The Secretary shall submit a notice to the requesting Member, the Senate Armed Services Committee, and the House Armed Services Committee with one of the following results:

> (1) The award or presentation of the decoration does not warrant approval on the merits. A statement explaining the Secretary's reason will be included.
>
> (2) The award or presentation of the decoration warrants approval and a waiver by law of time restrictions prescribed by law is recommended.
>
> (3) The award or presentation of the decoration warrants approval on the merits and has been approved as an exception to policy.
>
> (4) The award or presentation of the decoration warrants approval on the merits, but a waiver of the time restrictions prescribed in law is not recommended. A statement explaining the Secretary's reason will be included.

Source: Compiled from the National Defense Authorization Act for Fiscal Year 1996 (P.L. 104-106, §526), February 10, 1996.

Author Information

Carly A. Miller
Research Librarian

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